
8:30 a.m. Law and Motion

IN RE: BATES

CASE NUMBER: 26CV-0210349

Tentative Ruling on Petition for Name Change: Petitioner Stephanie Bates seeks to change her own last name, as well as her three minor children's last names, to Archer. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided.

Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). No proof of service is on file for Aaron Hille, who is identified in the Petition as a parent of two of the minors. The Petition indicates the father of one of the minors is deceased.

This matter is continued to **Monday, October 26, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date. No appearance is necessary on today's calendar.

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

Tentative Ruling on Motion to Quash Service of Summons: The Complaint in this personal injury action was filed on July 18, 2025. Defendant, Sunbabe, LTD, now specially appears to move for an order quashing Plaintiff's service of Summons. Plaintiff opposes the Motion. The Court notes Defendant's reply was untimely. The Court in its discretion will consider the late reply.

Requests for Judicial Notice.

Defendant request the Court take judicial notice of:

- (1) A copy of Defendant's Certificate of Incorporation and Articles of Incorporation issued by the Ontario Ministry of Public and Business Service Delivery.
- (2) A copy of the Certificate of Dissolution of Sunbabe, LTD issued by the Ontario Ministry of Public and Business Service Delivery.
- (3) A copy of Defendant's Articles of Dissolution.

Plaintiff requests the Court take judicial notice of:

- (1) Ontario Business Corporations Act, R.S.O. 1990, chapter B.16, Section 242- addresses proceedings against a dissolved corporation, service on a person last known as a director or officer and notice to Ontario governmental officials.
- (2) Ontario Rules of Civil Procedure, R.R.O. 1990, Regulation 194, rules 16.02, 16.03, 16.04, 16.08, and 16.09- addresses personal service on a corporation, alternatives at a residence or last registered office, sub-service, and proof.
- (3) Hague Conference on Private International Law, Canada Information under the Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, including Canada's recorded lack of opposition to Article 10(a), 10(b), and 10(c), the identification of process services as competent persons, and the Ontario Central Authority service estimate.